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|   |                                  | <p>"[I]n deciding whether there is a 'party prevailing on the contract,' the trial court is to compare the relief awarded on the contract claim or claims with the parties' demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources. The prevailing party determination is to be made only upon final resolution of the contract claims and only by 'a comparison of the extent to which each party ha [s] succeeded and failed to succeed in its contentions.' [Citation.]" (<i>Hsu v. Abbata</i> (1995) 9 Cal.4th 863, 876.)</p> <p>Here, the defendants have not achieved a dispositive victory. While the case was dismissed because of plaintiff's failure to appear, plaintiff can re-file the action as the dismissal was without prejudice. It therefore cannot be said there has been a "final resolution of the contract claims." (<i>Hsu</i> at 876)</p> <p>Accordingly, because defendants have not established they are the prevailing party under Section 1717, the motion for attorney's fees is DENIED.</p> <p>Plaintiff is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 2 | Kopenhefer v. Ford Motor Company | <p>The demurrer filed by defendant Ford Motor Company (Ford) directed to the fourth cause of action in the Third Amended Complaint (TAC) of plaintiff Ben Kopenhefer (Plaintiff) is <b>SUSTAINED without leave to amend.</b></p> <p>Ford is to file an answer to the TAC within 20 days.</p> <p>Ford demurs to the fourth cause of action for fraudulent inducement – concealment. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of fact." (<i>Hambrick v. Healthcare Partners Medical Group, Inc.</i> (2015) 238 Cal.App.4th 124, 162.)</p> <p>Fraud claims must be pled with particularity. Every element of the cause of action for fraud must be alleged in full, factually and specifically. The policy of liberal construction of pleading will not be invoked to sustain a pleading defective in any material respect. (<i>Wilhelm v. Pray, Price, Williams &amp; Russell</i> (1986) 186 Cal.App.3d 1324, 1332.)</p> <p>"The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) "[T]he requirement that fraud must be pleaded with specificity applies equally to a cause of action for</p> |